

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Andrew Schneider	Team: Team # 8	CCRB Case #: 200600184	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 12/31/2005 7:00 PM	Location of Incident: Corner of McGuinness Boulevard and Norman Avenue	18 Mo. SOL 6/30/2007	Precinct: 94		
Date/Time CV Reported Sat, 12/31/2005 7:55 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/05/2006 4:36 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jerard Seletski	24646	931201	094 PCT
2. POF Anne Sheldon	15528	921768	094 PCT
3. LT Joseph Morse	00000	900521	094 PCT
4. POM Glen Sofia	12386	911162	094 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Darrell Pierce	26634	916443	094 PCT
2. POM Tyree Fisher	31984	932645	094 PCT
3. POM Allan Pajak	29343	933138	094 PCT
4. POM Jimmy Cordero	15678	906003	094 PCT
5. POM Robert Youngs	17950	923396	094 PCT
6. POM Matthew Vondiezelski	04741	924595	094 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Joseph Morse	Abuse: Lieutenant Joseph Morse authorized the stop of the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . LT Joseph Morse	Force: Lieutenant Joseph Morse pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Jerard Seletski	Force: Police Officer Jerard Seletski pointed his gun at § 87(2)(b)	C . Exonerated
D . POF Anne Sheldon	Force: Police Officer Anne Sheldon pointed her gun at § 87(2)(b) § 87(2)(b)	D . Exonerated
E . POM Glen Sofia	Force: Police Officer Glen Sofia pointed his gun at § 87(2)(b)	E . Exonerated
F . POM Jerard Seletski	Abuse: Police Officer Jerard Seletski searched § 87(2)(b)	F . Substantiated
G . POF Anne Sheldon	Abuse: Police Officer Anne Sheldon frisked § 87(2)(b)	G . Exonerated
H . POF Anne Sheldon	Abuse: Police Officer Anne Sheldon searched § 87(2)(b)	H . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
I . LT Joseph Morse	Abuse: Lieutenant Joseph Morse searched the vehicle in which § 87(2)(b) and § 87(2)(b) § 87(2)(b) were passengers.	I . Exonerated

Synopsis

On December 31, 2006 at approximately 6:30PM § 87(2)(b) § 87(2)(b) and § 87(2)(b) were travelling in § 87(2)(b)'s vehicle. Moments later, a marked patrol car pulled behind them and activated its overhead lights. At the corner of McGuinness Boulevard and Norman Avenue in Brooklyn, § 87(2)(b) stopped the car (Allegation A). Lt. Joseph Morse and PO Jerard Seletski approached the passenger side, where § 87(2)(b) was sitting, with their guns pointed (Allegation B and Allegation C, respectively). Meanwhile, PO Anne Sheldon and PO Glen Sofia approached § 87(2)(b) in the driver's seat with their guns pointed (Allegation D and Allegation E, respectively). PO Seletski instructed § 87(2)(b) out of the car, and then searched his pockets (Allegation F). Meanwhile, PO Sheldon and PO Sofia had similarly instructed § 87(2)(b) out, and PO Sheldon frisked him (Allegation G). PO Sheldon allegedly searched § 87(2)(b)'s pockets (Allegation H). Lt. Morse then initiated a search of the vehicle (Allegation I).

§ 87(2)(g)

It has therefore been recommended that Allegation A be closed as exonerated. § 87(2)(g)

It has therefore been recommended that Allegation B, Allegation C, Allegation D and Allegation E be closed as exonerated. § 87(2)(g)

. It has therefore been recommended that Allegation F be closed as substantiated. § 87(2)(g)

. It has therefore been recommended that Allegation G be closed as exonerated. § 87(2)(g)

As such, it has been recommended that Allegation H be closed as unsubstantiated. § 87(2)(g)

it has therefore been recommended that Allegation I be closed as exonerated.

Summary of Complaint

§ 87(2)(b)

On December 31, 2005 at 7:55PM § 87(2)(b) and § 87(2)(b) white § 87(2)(b) called 911 to report that he had been stopped by the police; the 911 operator subsequently referred him to the IAB command center (Enc. 7 a-b). § 87(2)(b) provided a telephone statement on January 9, 2006 (Enc. 9) and was interviewed at the CCRB on January 17, 2006 (Enc. 10 a-f). § 87(2)(g)

On December 31, 2005 § 87(2)(b) was driving his late model green Audi A6; § 87(2)(b) rode in the passenger seat. No one else was in the car. At 7:00PM the two were at the southeast corner of Norman Avenue and Jewel Street in Brooklyn, where § 87(2)(b) observed a large crowd of about 30 civilians and 10 police officers. As they drove past the store a white male – identified through police documentation as § 87(2)(b) – pointed towards the green Audi. Moments afterwards, § 87(2)(b) turned around and saw red lights starting to flash from five or six marked patrol cars. § 87(2)(b) turned right onto McGuinness Boulevard and stopped on the side of the road.

When § 87(2)(b) had turned around he saw three uniformed officers pointing their guns at him. The first officer was described as a 6'-tall white male with black hair. The second officer has been described as a 6'3"-tall white male with a medium build and black hair. § 87(2)(b) described the third officer as a 6'-tall Hispanic male with a muscular build and a mustache. The investigation determined that Lt. Morse, PO Seletski, PO Sheldon and PO Sofia pointed their guns at the occupants. § 87(2)(b) told the IAB, however, that a white male officer and white female officer had approached him with their guns pointed at him. An officer was yelling, "Don't move! Put your hands up!" § 87(2)(b) put his hands up in front

of him. All of the officers were initially located at the right rear of the car. The officers slowly moved towards his door. Two of the officers continued to point their guns at § 87(2)(b) while one of the three § 87(2)(b) does not remember which one) opened his door. That officer pulled § 87(2)(b) out of the car by his jacket; § 87(2)(b)'s hands remained up and he did not resist the officer's efforts.

Once § 87(2)(b) was out of the car he told the officers they had made a mistake. An officer said, "Don't talk. Just stand." § 87(2)(b) was turned around and told to place his hands on the roof of the car. He did as instructed. He was now facing the car, standing next to the front, passenger side door. § 87(2)(b) stated that the officers holstered their guns once he had his hands on the hood. An officer, described as a 6'3"-tall, white male with a skinny build, light complexion, brown hair and a uniform, then frisked § 87(2)(b) from head to toe. The investigation has identified this officer as PO Seletski, § 87(2)(g). § 87(2)(b) stated that he was wearing a black jacket, blue jeans and a sweatshirt. The jacket has four pockets, his jeans had four pockets in the front and two in the back and his sweatshirt had two front pockets. § 87(2)(b) had a box of contact lenses, a swiss army knife, some napkins and a pencil in his pockets. PO Seletski then searched every pocket on § 87(2)(b)'s clothing. PO Seletski recovered the aforementioned items and placed them on the hood of the Audi, where they remained for the rest of the incident.

At the same time § 87(2)(b) was being frisked, officers identified through investigation as PO Sofia and PO Sheldon pulled § 87(2)(b) out of the driver's seat and brought him around the front of the Audi and next to § 87(2)(b).

The officers then brought § 87(2)(b) and § 87(2)(b) to the rear of the Audi. An officer, who was described as a 50 year old, 5'5"-tall white male with a muscular build, a bald head and wearing a uniform, instructed them to place their hands on the trunk; they complied with the command. § 87(2)(g). The unidentified officer then conducted a "better" frisk of § 87(2)(b) and § 87(2)(b). The investigation has not been able to identify the officer who conducted the second frisk of § 87(2)(b). Meanwhile, other officers searched the car. § 87(2)(b) did not recall which officers did this, although the investigation has determined that Lt. Morse was one of the officers. One officer searched the driver's area. A second officer searched the passenger's seat. A third officer searched the entire rear seat from the rear, driver's side door. Eventually, a patrol car drove up to the scene and a white male – identified as § 87(2)(b) – sitting in the back seat looked at § 87(2)(b) and § 87(2)(b) and shook his head "no."

§ 87(2)(b) protested the stop and said that he wanted to file a report. An officer, who was described as a 5'5"-tall white female with blonde hair and identified through investigation as PO Sheldon, told § 87(2)(b) that there was nothing that he could do. She also told him, "Someone saw you rob a liquor store. This is our job. We have to do it." Moments later, PO Seletski said, "Your stuff is on the hood. You can lose it in the dark." Afterwards the officers left.

Results of Investigation

Civilian Statements

§ 87(2)(b) § 87(2)(b) a § 87(2)(b) white § 87(2)(b) was interviewed over the telephone on March 8, 2006 (Enc. 11 a-b) § 87(2)(g). § 87(2)(b) stated that at least five officers approached him with their guns pointed. One officer approached his door, opened the door and instructed him to get out. § 87(2)(b) complied. An officer frisked § 87(2)(b) and then searched each of his pockets. Several officers then searched the trunk, the front seats and the rear seats of the vehicle. Afterwards, an officer detained § 87(2)(b) in the back seat of the Audi for thirty minutes. The officers finally holstered their guns when § 87(2)(b) was allowed out of the Audi. § 87(2)(b) denied speaking with § 87(2)(b) about the incident. § 87(2)(b) was unable to describe any of the officers.

§ 87(2)(b)

§ 87(2)(b) a § 87(2)(b) white § 87(2)(b) provided a statement to a 911 operator when he reported the crime on December 31, 2005 (Enc. 13) and also provided a telephone statement to the CCRB on February 17, 2006 (Enc. 12). § 87(2)(g)

§ 87(2)(b) stated that he was standing outside of a liquor store, § 87(2)(b) when a green, late model Audi with tinted windows pulled up. Two men inside walked out and attempted to rob him. One of the men attempted to hit § 87(2)(b) with a gun, but missed. § 87(2)(b) then tried to punch the man with the gun and grab the gun from him. The man ran away and fled in a green Audi. § 87(2)(b) called the police. Moments later, § 87(2)(b) was standing outside of the liquor store talking to the police when an Audi resembling that driven by the suspects drove by. § 87(2)(b) said to a police officer, "Hey, I think that's the car." The officers then sped after the Audi. Shortly afterwards, a patrol car returned and an officer stated told § 87(2)(b) that he needed to come identify the suspects. § 87(2)(b) got into the back of the car and drove down to where the Audi had been stopped. § 87(2)(b) did not recognize the men, and then was driven away.

Officer Statements

Lieutenant Joseph Morse of the 94th Precinct:

Lt. Morse, a § 87(2)(b) white male with brown hair was interviewed at the CCRB on April 21, 2006 (Enc. 20 a-b). On December 31, 2005 Lt. Morse worked from 2:45PM to 11:20PM as the platoon commander. Lt. Morse worked in uniform and was assigned to a marked patrol car. PO Sheldon was Lt. Morse's operator. Lt. Morse has no pertinent memo book entries.

Lt. Morse stated that he and PO Sheldon arrived to a liquor store in response to a reported robbery in progress. Lt. Morse was met at that location by the male complainant, identified through investigation as § 87(2)(b). The complainant described to Lt. Morse that a white male had pulled a gun out on him and then fled in a green car. Lt. Morse had § 87(2)(b) get into his patrol car for a canvass, which lasted about ten minutes. Lt. Morse recalled that, according to § 87(2)(b) the sole perpetrator fled east on Norman Avenue. The canvass yielded negative results and Lt. Morse returned to the crime scene. Lt. Morse, PO Sheldon and § 87(2)(b) got out of the patrol car and the three talked.

After about three minutes a green vehicle drove by them, heading west on Norman Avenue. § 87(2)(b) pointed to the car and said that it was the one used by the perpetrator. Lt. Morse stated that § 87(2)(b) recognized the car and not the occupants. Lt. Morse and PO Sheldon got into their patrol car, leaving § 87(2)(b) at the scene, chased the car and stopped it near the intersection with McGuinness Boulevard. Within approximately thirty seconds other sector cars and at least one unmarked car arrived to assist with the stop.

Lt. Morse stated that when he stepped out of his patrol car he drew his gun and pointed it at the passenger, whom the investigation has identified as § 87(2)(b). Lt. Morse and PO Sheldon were instructing the occupants to show their hands. Lt. Morse generally described § 87(2)(b) and § 87(2)(b) as compliant. Lt. Morse approached the passenger side of the car with PO Seletski while PO Sheldon and other officers (Lt. Morse did not know who) approached the driver's side. Lt. Morse ordered § 87(2)(b) to get out of the car and he complied. Lt. Morse recalled that § 87(2)(b) was "visibly shaken up." Lt. Morse instructed § 87(2)(b) to stand next to the car. Lt. Morse stated that he "may have given a quick pat down" but also stated that PO Seletski frisked him. Lt. Morse did not recall whether or not he might have frisked him first. Lt. Morse did not describe any additional sources of suspicion. Lt. Morse did not see PO Seletski enter § 87(2)(b)'s pockets. Lt. Morse recalled that, besides himself, PO Sheldon and PO Seletski, that PO Fischer and his partner (identified as PO Pierce) was also on the scene. Lt. Morse did not recall any other officers responding to the job.

Afterwards, Lt. Morse searched the back seat, the front seat and floor area of the car. Lt. Morse recalled that other officers assisted him with the search, but he could not remember which officers had done so specifically. Lt. Morse specifically recalled that one or more unidentified officers searched the trunk. Lt. Morse did not believe that he instructed any officers to search the trunk but stated that other officers would have taken that for granted if they saw him, the supervisor, searching other parts of the car. Shortly after the car search yielded nothing, a sector car operated by PO Fischer and his partner drove § 87(2)(b) from the crime scene to the location of the car stop. § 87(2)(b) stated that neither § 87(2)(b) nor § 87(2)(b) was the person who had robbed him.

At this point the occupants' demeanor changed from that of compliance to that of protest. They repeatedly asked why they had been stopped. Lt. Morse responded by explaining his reasons for stopping them. Lt. Morse denied that either the driver or passenger asked to file a complaint.

Lt. Morse allowed § 87(2)(b) and § 87(2)(b) to continue on their way. Later in the tour, Lt. Morse received a message over the radio from the IAB to respond to a location. Lt. Morse proceeded to the location and found § 87(2)(b). Lt. Morse stated that § 87(2)(b)'s brother had called the IAB to file a complaint. Lt. Morse spoke briefly to § 87(2)(b) and then called the command center.

Police Officer Jerard Seletski of the 94th Precinct:

PO Seletski prepared a UF-250 for the stop of § 87(2)(b) (Enc. 28 a-d). According to the document, § 87(2)(b) was stopped in suspicion of menacing and criminal possession of a weapon after five minutes of observation. PO Seletski indicated that § 87(2)(b) fit a description and exhibited a suspicious bulge. The following types of force were used in the stop: hands placed on suspect, pointing firearm at suspect, and suspect against wall/car. § 87(2)(b) was frisked because a violent crime was suspected and because of a suspicious bulge, which PO Seletski reported as having been keys and a wallet. The document indicates that an officer searched § 87(2)(b) on account of a hard object.

PO Seletski, a § 87(2)(b) white male with brown hair, was interviewed at the CCRB on April 3, 2006 (Enc. 16 a-b). On December 31, 2005 PO Seletski worked from 3:00PM to 11:35PM on patrol of sectors A, D and H. PO Seletski was working in uniform and was assigned to RMP 1757. He was working with PO Sofia. PO Seletski recorded in his memo book that he responded a 10-85 called over by a lieutenant to the corner of Norman and McGuinness at 6:40PM (Enc. 15 a-b). At 6:45PM, two males were stopped and two UF 250's were prepared.

§ 87(2)(g)

§ 87(2)(b). PO Seletski did not respond to the reported robbery, but did respond to Lt. Morse's request for backup at the corner of Norman Avenue and McGuinness Boulevard.

PO Seletski observed Lt. Morse approaching the driver's side of the vehicle and PO Sheldon approaching the passenger side. PO Seletski drew and pointed his gun as he approached the passenger side to assist PO Sheldon. PO Sofia approached the driver's side. When PO Seletski got to the front passenger door, he opened it, and instructed the passenger, identified through investigation as § 87(2)(b) to get out of the car. Once the passenger had his hands on top of the car, PO Seletski searched him. PO Seletski recalls having searched every pocket, stating, "If I recall correctly, I did a thorough search... because it was a gun point robbery." Despite having been presented with a copy of the UF-250 he prepared, which states he conducted a frisk, PO Seletski could not independently recall frisking § 87(2)(b) or the presence of a suspicious bulge. PO Seletski recalled that he removed § 87(2)(b)'s wallet from one of his pockets. Besides the wallet, PO Seletski did not recall finding any additional objects in any of the pockets. PO Seletski confirmed that officers searched the car, but he could not remember which officers did so.

Police Officer Anne Sheldon of the 94th Precinct:

PO Sheldon prepared a UF-250 for the stop of § 87(2)(b) § 87(2)(b) (Enc. 28 a-d). § 87(2)(b) was stopped after five minutes of observation on suspicion of robbery, menacing and criminal possession of a weapon. PO Sheldon listed "gunpoint robbery" as the other source of reasonable suspicion. PO Sheldon indicated that the only level of physical force used was placing hands on the suspect. PO Sheldon indicated that § 87(2)(b) was frisked, and she checked "other reasonable suspicion" as the basis for doing so. PO Sheldon, however, failed to specify. PO Sheldon indicated that no search had been conducted, but checked "other reasonable suspicion of weapons" as a basis for searching.

PO Sheldon, a § 87(2)(b) white female with blonde hair, was interviewed at the CCRB on May 10, 2006 (Enc. 24 a-b). § 87(2)(g). On December 31, 2005 PO Sheldon worked from 3:00PM to 11:35PM as Lt. Morse's operator. PO Sheldon was working in uniform and was assigned to a marked patrol car. PO Sheldon has the following memo book entries: "6:15PM: Robbery in

progress at 182 Norman Avenue. 6:40PM: Car stop, Audi 4d, black tint, 2 male white. Person fitting description, complainant pointed out vehicle on corner of Norman and Jewell. When vehicle pulled over by myself and Lt. Morse complainant stated the 2 m/w's were not them but the car was identical. UF 250 prepared.

PO Sheldon recalled that the victim was bleeding. PO Sheldon denied that she or Lt. Morse conducted a canvass of the area. As the suspicious vehicle drove by after several minutes of speaking to § 87(2)(b) the victim identified both the car and its occupants as the perpetrators and the car they fled in. Asked whether she pointed her gun directly at an occupant of the vehicle, PO Sheldon stated that she pointed her gun at the car. Several repetitions of the question yielded the same response, until, after conferring with her legal representative, she conceded that she did point her gun directly at the driver, § 87(2)(b) § 87(2)(b)

PO Sheldon could not remember when she holstered her gun. Lt. Morse approached the passenger side. PO Sheldon opened the door and instructed the driver, § 87(2)(b) to exit. PO Sheldon stated that § 87(2)(b) got out but she generally described his demeanor as uncooperative. PO Sheldon instructed § 87(2)(b) to face the car and place his hands on the roof; he complied with this command as well.

PO Sheldon proceeded by frisking § 87(2)(b) for weapons, but denied searching him. PO Sheldon stated that § 87(2)(b) was cursing and yelling although she could not remember what specifically he was saying. PO Sheldon denied that any officer searched the car.

In regards to the UF 250 PO Sheldon completed, she could not explain why she did not check the following boxes: hands on suspect, drawing firearm, pointing firearm. She attributed the discrepancy to her "oversight."

Police Officer Glen Sofia of the 94th Precinct:

PO Sofia, a § 87(2)(b) white male with brown hair, was interviewed at the CCRB on May 1, 2006 (Enc. 18 a-b). On December 31, 2005 PO Sofia worked from 3:00PM to 11:35PM on patrol of sectors A, D and H. PO Sofia worked in uniform with PO Seletski; they were assigned to RMP 1757. PO Sofia's memo book indicates that at 6:40PM he received a 10-85 from Lt. Morse. At that same time PO Sofia marked that two males were stopped and two UF 250's were prepared.

§ 87(2)(g)

§ 87(2)(b). PO Sofia opened the driver's side door of his own patrol car, stood behind it, drew his gun and pointed it at the stopped vehicle. An officer (PO Sofia did not know who) was giving the suspects verbal commands to exit the vehicle. PO Sofia believes that PO Seletski, Lt. Morse and PO Sheldon were also standing behind their doors with their guns pointed. Two males exited the car, one from the driver's seat and one from the passenger seat, and walked to the rear of their own vehicle. As soon as they exited PO Sofia holstered his gun. PO Sofia stated that the two men were initially "shaken up" but compliant with officers' commands. PO Sofia recalled that he and PO Sheldon approached the driver while Lt. Morse and PO Seletski approached the passenger.

PO Sofia initially stated that PO Sheldon searched the driver while PO Seletski searched the passenger. When asked to explain what a "search" meant, he paused, then stated "I guess they just patted them down." PO Sofia could not recall if he came into contact with the driver, whom the investigation has identified as § 87(2)(b). Meanwhile, two Anti-Crime officers – one of whom PO Sofia recalled was PO Vondiezenski – searched the vehicle.

NYPD Documents:

§ 87(2)(b)'s call to 911 generated a Sprint report (Enc. 25 a-c). At 6:15PM, Central Communications transmitted the job as a commercial robbery in progress at 182 Norman Avenue. The perpetrator was described as a white male wearing a gray hooded sweatshirt and blue jeans. At 6:17PM, a lieutenant from the 94th Precinct arrived on scene, and at the same time reported that "one male in auto (patrol car)" for a canvass. At 6:19PM, an unknown unit stated that the perpetrator fled westbound on Norman Avenue, then took a left on Jewell. At 6:19PM sectors B and C of the 94th Precinct were at the entrance to the Brooklyn-Queens Expressway; at 6:21PM both units transmitted that they responded to the job. At the same time a

unit further described the perpetrator as a white male, 20-25 years old with dark hair and a black automatic handgun. At 6:33PM the lieutenant stated that no further units were needed at the corner of McGuinness and Norman. At 6:44PM an unknown unit stated that one male had been removed from a vehicle, that two UF-250's had been prepared and that the canvass yielded negative results. Sector A and an Anti-Crime unit resumed patrol at 6:55PM and 7:04PM, respectively, although neither of those units indicated when they arrived on scene. Sector A resumed patrol at 7:06PM and at 7:12PM sector B and the lieutenant marked the final disposition as "crime report prepared."

PO Tyree Fisher prepared the criminal complaint report, which contains the following statement: "At the time and place of occurrence, § 87(2)(b) states while outside smoking a cigarette an unidentified perpetrator did approach him and did engage him in an unprovoked dispute. § 87(2)(b) further states the perpetrator displayed a black handgun and threatened to cause bodily harm. § 87(2)(b) states the perpetrator fled in a black and green Audi, eastbound on Manhattan/Jewel. The perpetrator is described as a white male, 20-25 years old, 5'6", 200 pounds, short black hair, tan construction boots, gray hooded sweatshirt, and blue jeans" (Enc. 26 a-c).

According to the 94th Precinct's third tour roll call, Lt. Morse was assigned as the platoon commander, with PO Sheldon assigned as his operator (Enc. 27 a-d). PO Sofia and PO Seletski were assigned to sectors A, D and H. PO Pierce and PO Fisher were assigned to sectors B, E and F. PO Pajak and PO Condero were assigned to sectors C and G. There are only two officers assigned to Anti-Crime on the roll call – PO Youngs and PO Vondiezelski.

Complainant History:

§ 87(2)(b) has filed no prior complaints with the CCRB (Enc. 6) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer Histories:

Lt. Morse and PO Sofia, both of whom have worked for the NYPD for fourteen years, have received no prior substantiations from the CCRB (Enc. 2, Enc. 5). Similarly, Neither PO Seletski nor PO Sheldon has received any substantiated allegations from the CCRB during their respective four- and eight-year tenures (Enc. 3, Enc. 4).

Conclusions and Recommendations

Officer Identification:

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is generally agreed upon that Lt. Morse and PO Seletski approached § 87(2)(b) on the passenger side while PO Sheldon and PO Sofia approached § 87(2)(b) in the driver's seat. Additional officers began to arrive at that time. Through their own admission, these four officers were identified as those having pointed their guns at § 87(2)(b) and § 87(2)(b). PO Seletski has been identified as the officer who searched him because he confirmed doing so. PO Sheldon confirmed her role in frisking § 87(2)(b) § 87(2)(g). No officer admitted searching § 87(2)(b) and § 87(2)(b) could not describe the officer who searched him, other than that it was the same officer who frisked him. § 87(2)(g). Lt. Morse stated that he began searching the car § 87(2)(g).

Facts not in Dispute:

The following facts are not in dispute. On December 31, 2005, at approximately 6:15PM § 87(2)(b) called 911 to report that a man with a gun menaced him and attempted to rob him. He provided a description of the perpetrator and reported him as having fled in a green Audi sedan. While speaking with Lt. Morse and PO Sheldon at the crime scene, a dark green Audi A6 drove past, and § 87(2)(b) indicated that might have been the perpetrator's getaway car. Lt. Morse and PO Sheldon pursued and then stopped the car. At least Lt. Morse, PO Sheldon, PO Seletski and PO Sofia approached the suspicious vehicle with their guns pointed at its occupants, who were then ordered out. PO Seletski searched § 87(2)(b) s

pockets. PO Sheldon, meanwhile, frisked § 87(2)(b). Lt. Morse started to search the vehicle and other unidentified officers followed suit. § 87(2)(b) was brought to the scene for a show up, but did not identify either occupant as the perpetrator. PO Seletski and PO Sheldon each prepared a UF 250.

Facts in Dispute:

§ 87(2)(g)

Credibility Analysis:

§ 87(2)(g)

§ 87(2)(g)

Allegations:

§ 87(2)(g)

Allegation A) Abuse of Authority: Lieutenant Joseph Morse stopped the vehicle in which § 87(2)(b) and § 87(2)(b) § 87(2)(b) were occupants.

According to Barry Kamins' *New York Search and Seizure*, "an officer may stop a vehicle to investigate criminal activity when he has a reasonable suspicion that its occupants have been engaged, are presently engaged, or are about to engage in conduct in violation of the law" (Enc. 1 b). Before the investigating officers ever spoke to § 87(2)(b) they had received radio transmission stating the perpetrator fled in a green Audi. When § 87(2)(b)'s vehicle drove past the crime scene, § 87(2)(b) identified it to the officers. § 87(2)(g)

According to *New York Search and Seizure*, "When information is supplied by a physically present but unidentified citizen, reasonable suspicion can be based upon the information received and the observations of the officer that corroborate or substantiate some detail or aspect of the information" (Enc. 1 c).

§ 87(2)(g)

§ 87(2)(b). It is therefore recommended that Allegation A be closed as *exonerated*.

Allegation B) Force: Lieutenant Joseph Morse pointed his gun at § 87(2)(b)

Allegation C) Force: Police Officer Jerard Seletski pointed his gun at § 87(2)(b)

Allegation D) Force: Police Officer Anne Sheldon pointed her gun at § 87(2)(b) § 87(2)(b)

Allegation E) Force: Police Officer Glen Sofia pointed his gun at § 87(2)(b) § 87(2)(b)

§ 87(2)(b) reported that the perpetrator struck him with a gun before fleeing. § 87(2)(g)

According to *New York Search*

and *Seizure*, an officer may approach a vehicle with his or her gun drawn as a protective measure when there is a “fear for his safety” (Enc. 1 d). Moreover, according to *NYPD v. Gliner*, “an officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another’s personal safety” (Enc. 1 e-g). § 87(2)(g)

It is therefore recommended that Allegation B, Allegation C, Allegation D and Allegation E be closed as *exonerated*.

Allegation F) Abuse of Authority: Police Officer Jerard Seletski searched § 87(2)(b)

PO Seletski, as he recalled, searched each pocket of § 87(2)(b)’s clothing articles, which is in accordance with § 87(2)(b)’s testimony. PO Seletski did not recall frisking § 87(2)(b). According to *New York Search and Seizure*, “the right to frisk does not permit an officer to conduct a full-blown search” (Enc. 1 h). According to *New York Search and Seizure*, an officer may conduct a search under two circumstances. The first circumstance is that in which an officer has effected an arrest, and the search is incident to a lawful arrest (Enc. 1 i). § 87(2)(g). Under the second circumstance, an officer is permitted to conduct a search when he conducts a frisk, encounters an object resembling a weapon and “reasonably suspects the object is a weapon” (Enc. 1 j). There exists one exception, however, to this latter circumstance. Under this exception, “a police officer can forgo a frisk and conduct an immediate search of a specific location on the suspect’s person. This exception to the frisk rule applies only when the officer has some information as to the precise location of a weapon.” § 87(2)(g)

According to the decision in *NYPD v. Dowd and Rose*, “an improper search or seizure is punishable misconduct if the officer acted with knowledge that he was acting improperly, acted without concern for the propriety of his actions, or acted without due and reasonable care that his actions be proper” (Enc. 1 k-l). The basis for this policy is described in *NYPD v. Wang*, which states, “The wisdom of this policy is apparent, for to penalize officers for taking vigorous police action in situations where close legal choices must be made would be to paralyze a significant proportion of law enforcement efforts” (Enc. 1 m-q). In *NYPD v. Wang*, an administrative judge found that, while the officer had no constitutional basis for stopping and frisking the complainant, the officer’s actions did not constitute misconduct (Enc. 1 m-q). The judge believed that the officer’s motive to stop and frisk the complainant was a sincere desire to prevent an armed robbery. § 87(2)(g)

. In *NYPD v. Wang*, the officer had stopped and attempted to frisk the complainant because the former believed the latter was carrying a gun in his waistband. § 87(2)(g)

It is therefore recommended that Allegation F be closed as *substantiated*.

Allegation G) Abuse of Authority: Police Officer Anne Sheldon frisked § 87(2)(b) § 87(2)(b)

§ 87(2)(g)

. According to *New York Search and Seizure*, an officer “is not permitted to frisk the driver or other occupants of a car unless he has a reasonable basis for suspecting that the individual is armed and dangerous” (Enc. 1 r). Moreover, Kamins writes that when an officer reasonably suspects that an individual has engaged in criminal activity, the officer may frisk the passenger of a car as a protective measure, based on a fear for his or her safety (Enc. 1 d). § 87(2)(g)

It is therefore recommended that Allegation G be closed as *exonerated*.

Allegation H) Abuse of Authority: PO Sheldon searched § 87(2)(b) § 87(2)(b)

§ 87(2)(g)

. It is therefore recommended that Allegation H be closed as *unsubstantiated*.

Allegation I) Abuse of Authority: Lieutenant Joseph Morse searched the vehicle in which § 87(2)(b) and § 87(2)(b) § 87(2)(b) **were passengers.**

According to *New York State Search and Seizure*, “if the police observe a vehicle, which matches the description of a “getaway” vehicle used in a crime, they have probable cause to search the car” (Enc. 1 s).

§ 87(2)(g)

. It is therefore recommended that Allegation H be closed as *exonerated*.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: